

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lauren Haydin	Team: Squad #17	CCRB Case #: 202306084	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 07/05/2023 2:36 AM, Wednesday, 07/05/2023 3:00 AM	Location of Incident: 2258 Atlantic Avenue, Over the Phone	18 Mo. SOL 1/5/2025	Precinct: 73
Date/Time CV Reported Wed, 07/05/2023 5:24 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 07/05/2023 5:24 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Arturo Sanchez	08836	963740	081 PCT
2. SGT Hilton Jeanpierre	01205	941954	081 PCT
3. PO Melanie Obrien	13078	971586	073 PCT
4. PO Elmer Maldonado	00631	966686	081 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Arturo Sanchez	Abuse: At 2258 Atlantic Avenue in Brooklyn, Police Officer Arturo Sanchez stopped the vehicle in which § 87(2)(b) § 87(2)(b) and § 87(2)(b) were occupants.	A . Unable to Determine
B . SGT Hilton Jeanpierre	Abuse: At 2258 Atlantic Avenue in Brooklyn, Sergeant Hilton Jeanpierre stopped the vehicle in which § 87(2)(b) § 87(2)(b) and § 87(2)(b) were occupants.	B . Unable to Determine
C . PO Elmer Maldonado	Abuse: At 2258 Atlantic Avenue in Brooklyn, Police Officer Elmer Maldonado stopped the vehicle in which § 87(2)(b) § 87(2)(b) and § 87(2)(b) were occupants.	C . Unable to Determine
D . SGT Hilton Jeanpierre	Abuse: At 2258 Atlantic Avenue in Brooklyn, Sergeant Hilton Jeanpierre obstructed his rank designation.	D . Unable to Determine
E . SGT Hilton Jeanpierre	Abuse: At 2258 Atlantic Avenue in Brooklyn, Sergeant Hilton Jeanpierre refused to provide his shield number to § 87(2)(b)	E . Unfounded
F . SGT Hilton Jeanpierre	Abuse: At 2258 Atlantic Avenue in Brooklyn, Sergeant Hilton Jeanpierre refused to provide his name to § 87(2)(b)	F . Unfounded
G . PO Arturo Sanchez	Abuse: At 2258 Atlantic Avenue in Brooklyn, Police Officer Arturo Sanchez refused to provide his shield number to § 87(2)(b)	G . Unfounded
H . SGT Hilton Jeanpierre	Abuse: At 2258 Atlantic Avenue in Brooklyn, Sergeant Hilton Jeanpierre failed to provide § 87(2)(b) with a business card.	H . Substantiated

Officer(s)	Allegation	Investigator Recommendation
I . SGT Hilton Jeanpierre	Abuse: At 2258 Atlantic Avenue in Brooklyn, Sergeant Hilton Jeanpierre failed to provide § 87(2)(b) with a business card.	I . Substantiated
J . SGT Hilton Jeanpierre	Abuse: At 2258 Atlantic Avenue in Brooklyn, Sergeant Hilton Jeanpierre failed to provide § 87(2)(b) with a business card.	J . Substantiated
K . SGT Hilton Jeanpierre	Abuse: At 2258 Atlantic Avenue in Brooklyn, Sergeant Hilton Jeanpierre failed to provide § 87(2)(b) with a business card.	K . Substantiated
L . PO Arturo Sanchez	Abuse: At 2258 Atlantic Avenue in Brooklyn, Police Officer Arturo Sanchez failed to provide § 87(2)(b) with a business card.	L . Substantiated
M . PO Arturo Sanchez	Abuse: At 2258 Atlantic Avenue in Brooklyn, Police Officer Arturo Sanchez failed to provide § 87(2)(b) with a business card.	M . Substantiated
N . PO Arturo Sanchez	Abuse: At 2258 Atlantic Avenue in Brooklyn, Police Officer Arturo Sanchez failed to provide § 87(2)(b) with a business card.	N . Substantiated
O . PO Arturo Sanchez	Abuse: At 2258 Atlantic Avenue in Brooklyn, Police Officer Arturo Sanchez failed to provide § 87(2)(b) with a business card.	O . Substantiated
P . PO Melanie Obrien	Abuse: Over the phone, Police Officer Melanie O'Brien did not process § 87(2)(b) complaint regarding officers.	P . Substantiated
Q . PO Melanie Obrien	Abuse: Over the phone, Police Officer Melanie O'Brien did not process § 87(2)(b) complaint regarding officers.	Q . Substantiated
R . PO Melanie Obrien	Discourtesy: Over the phone, Police Officer Melanie O'Brien acted discourteously toward § 87(2)(b)	R . Unable to Determine
S . PO Melanie Obrien	Discourtesy: Over the phone, Police Officer Melanie O'Brien acted discourteously toward § 87(2)(b)	S . Unable to Determine
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		

Case Summary

On July 5, 2023, § 87(2)(b) filed this complaint with the CCRB via the agency's call processing system. On July 5, 2023, § 87(2)(b) filed a duplicate complaint via the CCRB's website.

On July 5, 2023, at approximately 2:36 A.M., Police Officer Arturo Sanchez, Police Officer Elmer Maldonado, and Sergeant Hilton Jeanpierre, all of the 81st Precinct, stopped a vehicle driven by § 87(2)(b) a driver associated with an unknown rideshare company, in which § 87(2)(b) and § 87(2)(b) (who was 14 years old at the time of the incident), were occupants for the passengers allegedly not wearing their seatbelts in front of 2258 Atlantic Avenue in Brooklyn (**Allegations A-C: Abuse of Authority, unable to determine**). Sgt. Jeanpierre stood at the front passenger side window of the vehicle and allegedly stood with his hand obstructing his shield number (**Allegation D: Abuse of Authority, unable to determine**). § 87(2)(b) allegedly requested Sgt. Jeanpierre's name and shield number and he allegedly refused to provide it (**Allegations E and F: Abuse of Authority, unfounded**). § 87(2)(b) allegedly requested PO Sanchez's name and shield number, and PO Sanchez allegedly provided his name but not his shield number (**Allegation G: Abuse of Authority, unfounded**). The officers instructed the passengers of the vehicle to keep their seatbelts fastened and concluded the vehicle stop. PO Sanchez and Sgt. Jeanpierre did not provide any occupant of the vehicle with a business card at the conclusion of the stop (**Allegations H-O: Abuse of Authority, substantiated**).

Later that day, at approximately 3:00 A.M., § 87(2)(b) and § 87(2)(b) called the 73rd Precinct stationhouse approximately twenty times over the course of approximately 45 minutes. § 87(2)(b) spoke to Police Officer Melanie O'Brien of the 73rd Precinct over the phone. § 87(2)(b) repeatedly told PO O'Brien that he was upset with the officers who had conducted the traffic stop and PO O'Brien told him he could file a complaint with the CCRB and did not offer to take his complaint against the officers over the phone (**Allegation P: Abuse of Authority, substantiated**). § 87(2)(b) called the 73rd Precinct at the same time § 87(2)(b) made his calls, and PO O'Brien also answered her calls. § 87(2)(b) requested to make a complaint against PO Sanchez and Sgt. Jeanpierre regarding the vehicle stop, and PO O'Brien told § 87(2)(b) she could file the complaint online with the CCRB (**Allegation Q: Abuse of Authority, substantiated**). PO O'Brien allegedly hung up on § 87(2)(b) approximately five times throughout the phone calls (**Allegation R: Abuse of Authority, unable to determine**). § 87(2)(b) sister, § 87(2)(b) also called the 73rd Precinct multiple times and spoke to PO O'Brien. On the last phone call, PO O'Brien allegedly asked § 87(2)(b) "Is this a joke?" and then hung up the phone (**Allegation S: Discourtesy, unable to determine**).

§ 87(2)(g), § 87(4-b)

No arrest or summons were issued as a result of this incident.

The CCRB received Body-Worn Camera (BWC) footage from PO Sanchez and Sgt. Jeanpierre that captured the incident in its entirety (**Board Review 01**).

Findings and Recommendations

Allegation (A) Abuse of Authority: At 2258 Atlantic Avenue in Brooklyn, Police Officer Arturo Sanchez stopped the vehicle in which § 87(2)(b) § 87(2)(b) § 87(2)(b) and § 87(2)(b) were occupants.

Allegation (B) Abuse of Authority: At 2258 Atlantic Avenue in Brooklyn, Sergeant Hilton Jeanpierre stopped the vehicle in which § 87(2)(b) § 87(2)(b) § 87(2)(b) and § 87(2)(b) were occupants.

Allegation (C) Abuse of Authority: At 2258 Atlantic Avenue in Brooklyn, Police Officer Elmer Maldonado stopped the vehicle in which § 87(2)(b) § 87(2)(b) § 87(2)(b) and § 87(2)(b) were occupants.

In his CCRB interview (**Board Review 02**) § 87(2)(b) said he, § 87(2)(b) and § 87(2)(b) rode home in a rideshare vehicle from a Fourth of July celebration. All the passengers had their seatbelts fastened during the entirety of the ride. The vehicle turned onto Atlantic Avenue from Rockaway Avenue and § 87(2)(b) noticed an unmarked black sedan behind their vehicle that had activated its lights and sirens. The vehicle's driver pulled over and the unmarked black sedan stopped behind them. PO Sanchez and Sgt. Jeanpierre approached the vehicle. PO Sanchez informed § 87(2)(b) that the officers pulled the vehicle over because the rear passengers were not wearing their seatbelts. § 87(2)(b) told PO Sanchez that all the passengers in the vehicle had fastened their seatbelts prior to leaving their pick-up location and had had their seatbelts secured for the entirety of the ride. PO Sanchez told § 87(2)(b) that the officers had pulled up beside the vehicle and observed the rear passengers without seatbelts on. § 87(2)(b) did not recall seeing the police vehicle at any point prior to being pulled over. The entire road was empty while they drove on it. Rockaway Avenue is narrow, and likely could not fit two vehicles driving side-by-side. PO Sanchez requested § 87(2)(b) license and registration, which he provided. PO Sanchez ran § 87(2)(b) information and the officers let the civilians go without issuing any summonses.

In her CCRB interview (**Board Review 03**) § 87(2)(b) said that she ordered a rideshare vehicle to pick her, § 87(2)(b) and § 87(2)(b) up from a party and drive them home. § 87(2)(b) did not recall if she used the Uber or Lyft app to order the rideshare vehicle and did not recall the pickup time or location. She was unable to locate the receipt for the ride service to provide to the investigation. The passengers got into the vehicle. § 87(2)(b) sat in the rear passenger-side seat, § 87(2)(b) sat in the front passenger seat, and § 87(2)(b) sat in the rear driver-side seat. Prior to the vehicle driving away, § 87(2)(b) reminded § 87(2)(b) and § 87(2)(b) to fasten their seatbelts, and they all complied. The vehicle drove for approximately five minutes and § 87(2)(b) noticed a vehicle behind them activating their lights and sirens. § 87(2)(b) did not observe any vehicle driving alongside them during their drive. PO Sanchez approached § 87(2)(b) side of the vehicle and Sgt. Jeanpierre approached the passenger's side of the vehicle. Sgt. Jeanpierre told the occupants of the vehicle that the vehicle was pulled over because the passengers were not wearing seatbelts. § 87(2)(b) asked Sgt. Jeanpierre which passengers did not wear seatbelts. All the passengers' seatbelts were fastened for the entirety of the drive. Sgt. Jeanpierre did not tell § 87(2)(b) which passengers were not wearing seatbelts.

The investigation exhausted all contact attempts to § 87(2)(b) and was unable to obtain her statement. § 87(2)(b) is the mother of § 87(2)(b) who is a minor, and therefore the CCRB was unable to obtain a statement from him because of the lack of parental/guardian permission. § 87(2)(b) was identified by name via BWC footage. His name was then cross-referenced with the TLC database and contact attempts to him were exhausted without obtaining his statement.

PO Sanchez's BWC footage (**Board Review 04**) captures the entirety of the incident. At runtime

00:38, PO Sanchez exits the police vehicle from the rear driver-side door and walks towards a dark colored sedan. It is nighttime and there are several streetlamps which are sporadically placed and dimly light the street. The rear of the vehicle is illuminated by the headlights of the police vehicle that is parked behind it. At runtime 00:52, PO Sanchez shines a flashlight into the rear seats of the vehicle from the rear driver-side window where § 87(2)(b) and § 87(2)(b) are sitting with their seatbelts fastened behind the front passenger and the driver, respectively in the rear seats. At 01:29, § 87(2)(b) is seen speaking to Sgt. Jeanpierre on the opposite side of the vehicle. § 87(2)(b) hands PO Sanchez his registration. At runtime 02:30, § 87(2)(b) tells PO Sanchez that § 87(2)(b) told everyone to put their seatbelts on. At runtime 04:06, PO Sanchez walks away from the vehicle and goes back to the NYPD vehicle.

Sgt. Jeanpierre's BWC footage (**Board Review 05**) captures the entirety of the incident. At runtime 00:37, Sgt. Jeanpierre approaches the civilian vehicle. § 87(2)(b) sits in the front passenger seat. At 01:13, Sgt. Jeanpierre says, "You know it's a New York law that everyone needs to have a seatbelt on? When I pulled up next to you, no one in the back had a seatbelt." At runtime 01:20, § 87(2)(b) says they had their seatbelts on the entire time. Sgt. Jeanpierre says he drove next to them and observed them without their seatbelts on. At runtime 02:20, § 87(2)(b) says § 87(2)(b) is underage, so they made sure he had a seatbelt on prior to leaving their destination. § 87(2)(b) says § 87(2)(b) and § 87(2)(b) told everyone to put their seatbelts on prior to leaving the destination. At runtime 03:49, Sgt. Jeanpierre tells § 87(2)(b) that officers can stop taxis whenever to do "taxi checks." Sgt. Jeanpierre says § 87(2)(b) is good and walks away from the vehicle.

In his CCRB interview (**Board Review 06**) PO Sanchez said that he, Sgt. Jeanpierre, and PO Maldonado observed a rideshare vehicle whose rear passengers did not wear seatbelts. All three officers observed both rear passengers not wearing seatbelts which they verbally confirmed with each other. PO Sanchez sat on the rear driver's side of the vehicle. PO Sanchez did not recall which road the officers drove on when they initially observed the vehicle. The street was lit by lampposts. The lighting conditions were "slightly dark but lit" due to the streetlamps. PO Sanchez did not recall the positioning of the vehicle in relation to the officers' vehicle when they first observed it. He did not recall if the officers drove next to the vehicle at any point. He did not recall if the vehicle traveled in the same direction as their vehicle. Approximately two minutes after the officers observed the infraction, they mutually decided to pull over the vehicle. The driver and passengers of the vehicle did not commit any additional infractions other than not wearing seatbelts. The officers also made the vehicle stop to "check in" on the rideshare vehicle. At the time of the incident, several robberies had been committed in the area involving taxi drivers, and the officers were looking out for potential indicators of this crime pattern. The primary reason for the vehicle stop was because of the passengers' lack of seatbelts. PO Sanchez exited the vehicle and approached the driver's side. Upon approaching the vehicle, PO Sanchez observed the rear passengers with their seatbelts on. PO Sanchez requested § 87(2)(b) license and registration. He did not see the passengers put on their seatbelts at any point during the interaction. The seatbelts were already fastened upon PO Sanchez's approach to the vehicle.

In his CCRB interview (**Board Review 07**) Sgt. Jeanpierre said that he sat in the front passenger seat of the vehicle. Sgt. Jeanpierre observed two rear seat passengers not wearing their seatbelts. Sgt. Jeanpierre did not recall what street he was on when he observed the rideshare vehicle. He did not recall if officers had to turn onto a different street to follow the vehicle. He did not recall if they drove past the vehicle at any point. He did not recall the position of his vehicle in relation to the § 87(2)(b) vehicle when he observed the infraction, nor did he recall from what angle he initially observed the vehicle. The street the officers drove on was dimly lit. Sgt. Jeanpierre did not recall if PO Sanchez or PO Maldonado verbalized observing any passengers in the vehicle with their

seatbelts unfastened. He did not recall who made the decision to initiate the vehicle stop, nor did he recall any conversation about the infraction prior to initiating the vehicle stop. Sgt. Jeanpierre approached the passenger's side of the vehicle. Sgt. Jeanpierre told § 87(2)(b) and § 87(2)(b) that the reason the vehicle was pulled over was because they were not wearing seatbelts. § 87(2)(b) and § 87(2)(b) had their seatbelts fastened for the entire time Sgt. Jeanpierre spoke to the occupants of the vehicle. Sgt. Jeanpierre did not observe any passenger put on their seatbelt during the interaction. The rear occupants' seatbelts were fastened for the duration of his time standing next to the vehicle.

In his CCRB statement (**Board Review 08**) PO Maldonado said that he drove the police vehicle on the date of the incident. PO Maldonado drove near the rideshare vehicle but did not initially observe it until Sgt. Jeanpierre pointed it out to him. Sgt. Jeanpierre instructed PO Maldonado to pull over the vehicle, as he had observed some of the passengers not wearing seatbelts. PO Maldonado observed the vehicle but could not see inside due to his and the police vehicle's positioning behind the vehicle. He could see the backs of the two rear passenger's heads but could not see anything else about them. PO Maldonado did not recall where the vehicle was positioned in relation to his vehicle upon his initial observation of the vehicle. Sgt. Jeanpierre did not tell PO Maldonado which passengers did not wear their seatbelts. PO Maldonado did not observe any passenger not wearing a seatbelt. He did not state to either of the other two officers in the vehicle that he observed the violation. PO Maldonado activated his lights and sirens and initiated the vehicle stop. PO Maldonado parked behind the vehicle while PO Sanchez and Sgt. Jeanpierre exited the vehicle to conduct the vehicle stop. PO Maldonado remained inside of the police vehicle for the entirety of the vehicle stop and did not have any interaction with the occupants of the vehicle.

The CCRB requested any warrant audit associated with the date, time, location, and officers involved in the incident and received negative results (**Board Review 23**).

People v. Gomez, 165 Misc. 2d 197 (**Board Review 25**), states that in 1993, the NYPD's Street Crime Unit implemented a "Taxi Safety Check Program," which allowed officers to conduct a vehicle stop of every tenth livery taxicab without reasonable suspicion. This program was implemented as a result of a serious increase in the number of robberies and gunshot murders of NYC taxicab drivers. *People v. Gomez* upheld that vehicle stops conducted under this Taxi Safety Check Program are constitutional and within the authority of a member of service.

In 2002, *People v. Abad*, 98 N.Y.2d 12 (**Board Review 24**), upheld the constitutionality of an amended Taxi Safety Check Program, titled "Taxi/Livery Robbery Inspection Program" (TRIP). In this program, an owner of a taxicab can opt in to join TRIP. By joining the program, the owner agrees that the police may stop the aforementioned vehicle at any time in accordance with the Program's guidelines. Participating owners are given identical, numbered decals to be affixed to their vehicles, one on each rear side window and on conspicuously within the rear passenger compartment where the passenger can read it. These decals read, "This vehicle may be stopped and visually inspected by the police at any time to ensure driver's safety." Under TRIP guidelines, members of service may briefly stop and visually inspect a vehicle bearing TRIP decals without suspicion.

§ 87(2)(b) and § 87(2)(b) alleged that they had their seatbelts fastened for the entirety of the ride and did not violate any traffic laws at any point. PO Sanchez and Sgt. Jeanpierre both affirmed that they had seen the rear passengers of the vehicle without seatbelts and cited this as the reason for the vehicle stop. PO Maldonado did not personally observe the infraction but was informed that Sgt. Jeanpierre had directly observed it. § 87(2)(g)

§ 87(2)(g) Additionally, Sgt. Jeanpierre mentioned to § 87(2)(b) during the traffic stop that officers may conduct vehicle stops at any point to TLC vehicles. § 87(2)(g)

It is therefore recommended that **Allegations A, B, and C** be closed as **unable to determine**.

Allegation (D) Abuse of Authority: At 2258 Atlantic Avenue in Brooklyn, Sergeant Hilton Jeanpierre obstructed his rank designation.

Allegation (E) Abuse of Authority: At 2258 Atlantic Avenue in Brooklyn, Sergeant Hilton Jeanpierre refused to provide his shield number to § 87(2)(b)

Allegation (F) Abuse of Authority: At 2258 Atlantic Avenue in Brooklyn, Sergeant Hilton Jeanpierre refused to provide his name to § 87(2)(b)

Allegation (G) Abuse of Authority: At 2258 Atlantic Avenue in Brooklyn, Police Officer Arturo Sanchez refused to provide his shield number to § 87(2)(b)

In his CCRB interview (**Board Review 02**) § 87(2)(b) said Sgt. Jeanpierre stood on the passenger's side of the vehicle during the vehicle stop. Sgt. Jeanpierre stood with his hand grasping his badge, which was on his upper shoulder, intentionally covering his name and shield number.

§ 87(2)(b) requested Sgt. Jeanpierre's name and shield number, and Sgt. Jeanpierre did not respond or move his hand away from his badge. § 87(2)(b) requested PO Sanchez's name and shield number, and PO Sanchez responded to § 87(2)(b) request and said his name was "R. Sanchez." He did not provide his shield number.

In her CCRB interview (**Board Review 03**) § 87(2)(b) said that Sgt. Jeanpierre stood on the passengers' side of the vehicle. § 87(2)(b) asked Sgt. Jeanpierre several times which passengers did not have their seatbelts on, and he did not answer her. At the end of the stop, § 87(2)(b) asked Sgt. Jeanpierre for his name and badge number, and Sgt. Jeanpierre did not respond.

PO Sanchez's and Sgt. Jeanpierre's BWC footage (**Board Review 01**) is comprehensive. At no point in the footage does any person ask PO Sanchez or Sgt. Jeanpierre for their names or shield numbers. PO Sanchez's BWC (**Board Review 04**) footage does not capture a clear view of Sgt. Jeanpierre at any point in the footage and therefore does not address whether or not Sgt. Jeanpierre had his hand covering his badge at any point.

In his CCRB interview (**Board Review 07**) Sgt. Jeanpierre said that he stood at the front passenger side seat of the vehicle. Sgt. Jeanpierre spoke with § 87(2)(b) who sat in the rear passenger seat. He informed § 87(2)(b) that the vehicle was stopped due to the rear passengers not having seatbelts on. He did not have any conversation with any of the occupants about anything other than the reason for the stop. Sgt. Jeanpierre did not knowingly obstruct his shield at any point during the vehicle stop. Sgt. Jeanpierre did not hear any civilian ask PO Sanchez or himself for their names or shield numbers, nor did he hear any kind of verbal interaction between PO Sanchez and the occupants of the vehicle.

In his CCRB interview (**Board Review 06**) PO Sanchez said that he stood at the driver's side of the vehicle during the stop. PO Sanchez requested § 87(2)(b) license and registration and ran his information. PO Sanchez told § 87(2)(b) that the reason for the stop was because the rear passengers of the vehicle were not wearing seatbelts. PO Sanchez did not hear any verbal interaction between Sgt. Jeanpierre and the occupants of the vehicle. No occupant of the vehicle requested PO Sanchez's name or shield number at any point in the interaction. He did not speak with the rear passengers of the vehicle at any point during the interaction. He did not intentionally

obstruct his shield, nor did he refuse to provide his shield number to any of the occupants.

§ 87(2)(b) alleged that Sgt. Jeanpierre intentionally obstructed his rank designation during the traffic stop by covering his shield with his hand. Sgt. Jeanpierre said he did not intentionally obstruct his shield at any point during the vehicle stop. PO Sanchez's BWC footage does not capture any clear view of Sgt. Jeanpierre during the vehicle stop, nor does any other BWC footage,

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **unable to determine**.

§ 87(2)(g)

BWC footage of the incident is comprehensive. At no point does any occupant of the vehicle request PO Sanchez's or Sgt. Jeanpierre's name or shield number, nor does either officer refuse to provide their names or shield numbers. It is therefore recommended that **Allegations E, F, and G**, be **unfounded**.

Allegation (H) Abuse of Authority: Sergeant Hilton Jeanpierre failed to provide § 87(2)(b) with a business card.

Allegation (I) Abuse of Authority: Sergeant Hilton Jeanpierre failed to provide § 87(2)(b) with a business card.

Allegation (J) Abuse of Authority: Sergeant Hilton Jeanpierre failed to provide § 87(2)(b) with a business card.

Allegation (K) Abuse of Authority: Sergeant Hilton Jeanpierre failed to provide § 87(2)(b) with a business card.

Allegation (L) Abuse of Authority: Police Officer Arturo Sanchez failed to provide § 87(2)(b) with a business card.

Allegation (M) Abuse of Authority: Police Officer Arturo Sanchez failed to provide § 87(2)(b) with a business card.

Allegation (N) Abuse of Authority: Police Officer Arturo Sanchez failed to provide § 87(2)(b) with a business card.

Allegation (O) Abuse of Authority: Police Officer Arturo Sanchez failed to provide § 87(2)(b) with a business card.

In their CCRB interviews (**Board Review 02, 03**) § 87(2)(b) and § 87(2)(b) both said that at the conclusion of the vehicle stop, PO Sanchez and Sgt. Jeanpierre did not issue any of the occupants a summons, nor did they issue § 87(2)(b) a summons. PO Sanchez and Sgt. Jeanpierre did not provide any occupant of the vehicle with any form of documentation, including business cards.

PO Sanchez's BWC footage (**Board Review 04**) captures the entirety of the incident. At runtime 04:01, PO Sanchez tells § 87(2)(b) "You're good, man." PO Sanchez walks away from the vehicle and does not offer any occupant a business card.

Sgt. Jeanpierre's BWC footage (**Board Review 05**) captures the entirety of the incident. At runtime 03:52, Sgt. Jeanpierre tells § 87(2)(b) of the vehicle that officers can stop taxis at any time. At runtime 03:58, Sgt. Jeanpierre tells § 87(2)(b) that he is "good," and walks away from the vehicle. He does not offer a business card to any of the occupants.

In his CCRB interview (**Board Review 09**) Sgt. Jeanpierre said that he did not provide any occupant of the vehicle with a business card at the conclusion of the stop. Sgt. Jeanpierre did not provide his business card because no individual in the vehicle requested one from him or PO Sanchez. Sgt. Jeanpierre did not believe he was required to provide a business card at the conclusion of the interaction because no occupant requested it from him. Generally, Sgt. Jeanpierre believed that officers are only required to provide business cards to individuals who request them during vehicle stops.

In his CCRB interview (**Board Review 10**) PO Sanchez said that he did not provide any occupant of the vehicle with a business card at any point during the interaction. PO Sanchez did not believe he was required to provide any occupant of the vehicle with a business card because none of them requested one. He believed he was only required to provide a business card if the occupants of a vehicle specifically requested a business card.

NYPD Administrative Guide 304-11 (Board Review 11) states that when a uniformed member of service interacts with a member of the public and/or concludes a law enforcement activity, they are required to offer a pre-printed Right to Know Business Card upon the conclusion of law enforcement activities, except in cases when a summons is issued or an arrest is made, or exigent circumstances are present. The NYPD Administrative Guide identifies a “stop where an officer has individualized, reasonable suspicion that the person stopped has committed, is committing, or is about to commit a crime where a reasonable person would not feel free to end the encounter” as a law enforcement activity.

NY CLS Veh & Tr § 1229-c (Board Review 12) states that no person sixteen years of age or over shall be a passenger in a motor vehicle unless such person is restrained by a safety belt approved by the commissioner.

It is undisputed that neither PO Sanchez nor Sgt. Jeanpierre provided any occupant of the vehicle with a business card at the conclusion of the interaction. It is also undisputed that the vehicle and its occupants were being stopped for allegedly violating NY CLS Veh & Tr § 1229-c, and the occupants were not free to leave. § 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegations H-O** be substantiated.

Allegation (P) Abuse of Authority: Over the phone, Police Officer Melanie O’Brien did not process § 87(2)(b) complaint regarding officers.

Allegation (Q) Abuse of Authority: Over the phone, Police Officer Melanie O’Brien did not process § 87(2)(b) complaint regarding officers.

Allegation (R) Discourtesy: Over the phone, Police Officer Melanie O’Brien acted discourteously toward § 87(2)(b)

Allegation (S) Discourtesy: Over the phone, Police Officer Melanie O’Brien acted discourteously to § 87(2)(b)

In his CCRB interview (**Board Review 02**) § 87(2)(b) said he, § 87(2)(b) § 87(2)(b) and § 87(2)(b) called the 73rd Precinct to file a complaint against the officers who had stopped their taxi and get more information about them. § 87(2)(b) is the mother of § 87(2)(b) and § 87(2)(b) sister. When § 87(2)(b) § 87(2)(b) and § 87(2)(b) returned home from the incident, § 87(2)(b) told § 87(2)(b) they should call the stationhouse to file a complaint. PO O’Brien answered the phone and spoke with § 87(2)(b) who asked for the names of the officers who pulled the vehicle over. PO O’Brien said she did not know who the officers were because they were likely detectives. § 87(2)(b) repeatedly asked PO O’Brien for information about the

officers. PO O'Brien put § 87(2)(b) on hold for an extended period of time. § 87(2)(b) remained on the line for approximately five minutes and decided to hang up. § 87(2)(b) called back approximately five more times over a period of forty-five minutes using § 87(2)(b) and § 87(2)(b) phone numbers. PO O'Brien answered all of the calls and put the calls on hold. § 87(2)(b) continued to call back on § 87(2)(b) and § 87(2)(b) phones. PO O'Brien hung up the phone without warning approximately five times. The length of these five phone conversations in which PO O'Brien hung up varied. § 87(2)(b) called again, and PO O'Brien answered. PO O'Brien said, "Is this a joke?" and hung up the phone. § 87(2)(b) § 87(2)(b) § 87(2)(b) and § 87(2)(b) did not call again after this call.

In her CCRB interview (**Board Review 03**) § 87(2)(b) said that approximately two hours after the vehicle stop, § 87(2)(b) sister, § 87(2)(b) called § 87(2)(b) and asked her to call the 73rd Precinct to get the officers' names who were involved in the vehicle stop. During this portion of the incident, and contrary to § 87(2)(b) statement, § 87(2)(b) stated that she was not physically present with § 87(2)(b) and § 87(2)(b). § 87(2)(b) provided § 87(2)(b) with the phone number for the 73rd Precinct. § 87(2)(b) called the 73rd Precinct and PO O'Brien answered the phone. § 87(2)(b) told PO O'Brien that she wanted to make a complaint against the officers. PO O'Brien informed § 87(2)(b) that she had already received multiple phone calls about the same incident. PO O'Brien provided § 87(2)(b) with the CCRB website and informed her that if she wanted to make a complaint, she had to file it on the CCRB's website or call the CCRB. She did not offer to take § 87(2)(b) complaint over the phone.

In her CCRB interview (**Board Review 13**) PO O'Brien said that § 87(2)(b) called the desk officer's phone, and she answered. PO O'Brien was the Telephone/Switchboard Operator on the date of the incident. PO O'Brien did not know how § 87(2)(b) obtained the phone number for that phone, as the desk phone is used only internally between NYPD officers. § 87(2)(b) told PO O'Brien that he was pulled over by an unmarked vehicle somewhere in the vicinity of the 73rd Precinct. § 87(2)(b) told PO O'Brien that the officer who stood on the passenger side of the vehicle refused to identify himself. PO O'Brien asked for any identifying information for the officers, which § 87(2)(b) did not have. PO O'Brien said she needed more information about the officers to make a complaint against them. PO O'Brien told § 87(2)(b) that the number they had called was for higher-ups in the department, and they needed to call a different line. § 87(2)(b) and § 87(2)(b) called approximately twenty to thirty times over the span of approximately twenty minutes. PO O'Brien answered the calls every time. Each time they called, § 87(2)(b) and § 87(2)(b) asked PO O'Brien for the names of the officers involved in the incident. Both § 87(2)(b) and § 87(2)(b) requested this information to make a complaint against the officers. PO O'Brien repeatedly told them that she did not have that information, as they could not describe the officers and did not receive any paperwork which would provide any identifying information for the officers. On the last call, PO O'Brien asked § 87(2)(b) and § 87(2)(b) what they wanted her to do and what the purpose of their repeated phone calls was. § 87(2)(b) reiterated that he wanted to know the names of the officers involved in the vehicle stop. PO O'Brien told § 87(2)(b) that he could come into the stationhouse to discuss the incident if he wanted to, but he needed to stop calling the number. PO O'Brien did not hang up the phone on § 87(2)(b) or § 87(2)(b) at any point during the incident. PO O'Brien did not say, "Is this a joke?" and hang up the phone on § 87(2)(b) or § 87(2)(b) at any point during the incident. PO O'Brien did not tell § 87(2)(b) he could contact the CCRB if he wanted to make a complaint against an officer at any point during the interaction.

NYPD Patrol Guide Procedure 207-28 (Board Review 14) states that complaints against uniformed members of service may be made at any patrol precinct, police service area, transit district, traffic unit, Internal Affairs Bureau, or any other office of the Department, including the Office of the

Police Commissioner or office of a deputy commissioner. Complaints against uniformed members of service may be taken over the phone, by mail, or in person. When a complaint is made over the phone, members of service must process the complaint by preparing the first copy of a civilian complaint report in their own handwriting and treat it as if it was prepared by the complainant. All captions must be completed. If the requested information is not given, indicate such appropriate captions on the report. The member of service must then advise the complainant that they will receive a written acknowledgement from the Civilian Complaint Review Board.

It is undisputed that PO O'Brien did not take § 87(2)(b) or § 87(2)(b) complaint over the phone against the officers involved in the vehicle stop. § 87(2)(g)

It is therefore recommended that **Allegations P and Q** be **substantiated**.

§ 87(2)(b) alleged that PO O'Brien hung up the phone on himself and § 87(2)(b) who was with him at the time, without warning. He also alleged that PO O'Brien said, "Is this a joke?" prior to hanging up during § 87(2)(b) phone call. PO O'Brien stated that she did not hang up the phone on either civilian at any point in the interaction, and did not say, "Is this a joke?" to any individual over the phone prior to hanging up. § 87(2)(g)

It is therefore recommended that **Allegations R and S** be closed as **unable to determine**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**Board Review 18**).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (**Board Review 19**).
- PO O'Brien has been a member of service for two years and has been a subject in one additional CCRB complaint and two additional CCRB allegations, none of which were substantiated. § 87(2)(g)
- PO Maldonado has been a member of service for five years and this is the first CCRB complaint to which he has been a party.
- PO Sanchez has been a member of service for six years and has been a subject in three additional CCRB complaints and three additional allegations, of which none have been substantiated. § 87(2)(g)
- Sgt. Jeanpierre has been a member of service for seventeen years and has been a subject in seven additional cases and 14 additional allegations, of which three were substantiated.
 - Case #201900192 involved a substantiated allegation of failure to provide RTKA card against Sgt. Jeanpierre. The Board recommended Command Level Instructions and the NYPD imposed Instructions.
 - Case #201901685 involved substantiated allegations of entry of premises and failure to provide RTKA card against Sgt. Jeanpierre. The Board recommended Command Discipline B and the NYPD imposed Command Discipline B.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.

- As of February 1, 2024, the New York City Office of the Comptroller had no record of a Notice of Claim being filed in regard to this incident (**Board Review 20**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
 [REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]

RPBP History

This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 17

Investigator:	<u>Lauren Haydin</u>	<u>Inv. Lauren Haydin</u>	<u>04/05/2024</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Benjamin Shelton</u>	<u>AIM Benjamin Shelton</u>	<u>04/08/2024</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date